"Which Parts Can We Handle Ourselves?"

Ten questions families ask when planning ahead for Mom's care: plain, general answers, and when to take yours to a professional.

Is it too early to be thinking about this? Who would we even ask? Yours is not the only family at the kitchen table with those questions. These are the ones that come up most when a family plans ahead, answered in general terms.

None of the answers is about Mom in particular, and none states a Medicaid rule, because those vary by state and change. Where a question needs someone who knows her situation, the answer says who to ask.

1 Mom is managing fine. Is it too early to be thinking about this?

No, and it isn't late either. Medicare.gov's advice is to start planning for non-medical long-term care now, to maintain independence and to get the care a person may need, in the setting she wants. When there's time, planning mostly means getting organized and knowing what you'd keep an eye on. [1]

> **ASK A PROFESSIONAL WHEN** you'd like someone who knows your state to look over what you've gathered. That's your Medicaid planner.

2 What should we do first?

Put what you already know in one place: Mom's care needs, what she'd prefer, her finances in round numbers, what you've learned about Medicaid, and the legal documents you know exist. Then mark what you know, what you're assuming, and what nobody has looked at. That is organizing, and it changes nothing. The Consumer Financial Protection Bureau's guide for people managing a relative's money makes the same point about finances: careful decisions start with knowing what the person owns and owes. [2]

> **ASK A PROFESSIONAL WHEN** "first" means the first legal or financial step. Which steps may be appropriate, and in what order, is worked out with the right professionals.

3 What needs to change before we apply?

There's no general answer, and for a family planning ahead there may be no application in sight. Medicaid's overall rules are based on federal requirements, but states have considerable leeway, so eligibility rules vary from state to state. Even timing is individual: the Administration for Community Living says the best time to apply depends on a person's medical situation, marital status and the complexity of their finances. [3] [4]

> **ASK A PROFESSIONAL WHEN** you're asking this about Mom. Bring what you've gathered to your Medicaid planner or an elder law attorney who knows her state, and hold any changes until you've asked.

4 Which parts can we handle ourselves, and where do we need professional help?

The family's part is gathering, listing, talking and writing things down. Anything that would move, gift or retitle money or property, create or change a legal document, or buy or cancel insurance goes to a professional first. The Consumer Financial Protection Bureau's guide says to get legal advice and be very careful about decisions that may affect a person's eligibility for Medicaid, and the Administration for Community Living notes that most people are unable to handle the complexity of planning their medical and financial futures on their own. [2] [5]

> **ASK A PROFESSIONAL WHEN** you can't tell which side of that line an item falls on. Write it down as a question and ask before doing it.

5 Doesn't Medicare cover long-term care?

Medicare.gov says it doesn't: Medicare and most health insurance, including Medigap, don't pay for long-term care services, and long-term care is different from skilled nursing facility care. Medicaid, a joint federal and state program that helps people with low income and assets pay health care bills, does pay for custodial care in nursing homes and at home. That is why Medicaid comes up when families plan ahead. [1] [3]

> **ASK A PROFESSIONAL WHEN** you want to know what Mom's own coverage or policies would pay for. Her insurance company or a licensed insurance professional is the one to ask.

6 Everyone tells us something different. Who's right?

Each may be right about the one case they know. Because states have considerable leeway in how they run Medicaid, what held for a neighbor's family in another state may not describe Mom's situation. Write each piece of advice down with who said it, and let the disagreement stand for now. [3]

> **ASK A PROFESSIONAL WHEN** two pieces of advice point in opposite directions and someone wants you to choose. Take both to your Medicaid planner or an elder law attorney who knows your state.

7 Who would we even ask?

It depends on the question. In this roadmap, your Medicaid planner brings the pieces into one picture, legal questions go to an elder law attorney, insurance, investment and tax questions go to professionals licensed for them, and questions about care needs go to Mom's doctors or a care manager. The Consumer Financial Protection Bureau's guide notes that many professionals must be licensed or registered by a government agency, and suggests checking qualifications and asking questions before hiring anyone. The Administration for Community Living adds that free legal support may be available through federally funded legal assistance programs. [2] [5]

> **ASK A PROFESSIONAL WHEN** you can't tell whose question it is. Mark it “not sure” and raise it with the first professional you speak with.

8 Mom signed a will years ago. Is the legal side taken care of?

A will is one document among several. A power of attorney, the Consumer Financial Protection Bureau explains, gives someone else legal authority to make decisions about a person's money or property, and a medical power of attorney names someone to make health care decisions when the person cannot. AARP's legal checklist adds that an existing will is worth reviewing during major life changes, to be sure it still reflects the person's wishes. What a family can do is list which documents Mom has, the date on each, and where each is kept. [6] [7] [8]

> **ASK A PROFESSIONAL WHEN** you want to know whether her documents would work the way she intends. Requirements vary by state, and that is an elder law attorney's question.

9 What would make us pick the plan up again?

The events a family might name include a hospital stay, a new diagnosis, changes in memory, needing more help with daily activities, a family caregiver needing more support, a move to a care facility, or care costs rising quickly. Which of those belong on your list is for your family to talk over, and what should happen when one occurs is a question for your Medicaid planner. The Family Caregiver Alliance gives the general habit: meet regularly, and at least when the caregiving situation changes. [9]

> **ASK A PROFESSIONAL WHEN** one of those has happened and you're not sure whether it changes anything.

10 Once we've written all this down, do we have a Medicaid plan?

You have what a plan is built from: where things stand, what you're watching, what would make you pick it up again, and who each open question belongs to. AARP's legal checklist describes a written family plan as something that can clarify everyone's roles and reduce the risk of misunderstandings, while noting that it isn't a legal document. The written roadmap itself, with its owners, priorities, review dates and activation triggers, is built in the course with your Medicaid planner. [8]

> **ASK A PROFESSIONAL WHEN** you're wondering whether your notes are enough to act on. They are where the conversation starts, and they don't replace it.

What this guide doesn't do

It doesn't answer any question about Mom herself, and it doesn't state any limit or rule. Anything that depends on her state, her finances or her documents needs a professional who knows them. Nothing here is legal, financial or tax advice.

Ready for the next step?

You have plain answers to the general questions, and you know which ones belong to a professional. The planning interview is where the questions become about your family: it asks about your situation and gives you a free planning report you can bring to any conversation about paying for care.

Get Your Free Planning Report ›

WHERE THIS COMES FROM

1. Medicare.gov (Centers for Medicare & Medicaid Services), Long-term care
2. Consumer Financial Protection Bureau, Managing someone else's money: Help for agents under a power of attorney
3. Administration for Community Living (LongTermCare.gov), Medicaid
4. Administration for Community Living (LongTermCare.gov), Applying for Medicaid

5. Administration for Community Living (LongTermCare.gov), Will I Need a Lawyer?
6. Consumer Financial Protection Bureau, Considering a financial caregiver? Know your options
7. Administration for Community Living (LongTermCare.gov), Legal Steps for Medical Well-being
8. AARP, A Legal Checklist for Family Caregivers
9. Family Caregiver Alliance, Holding a Family Meeting
